



CHAPTER lxxxix.

An Act to empower the mayor aldermen and burgesses of the county borough of Middlesbrough and the county council of the administrative county of Durham to construct a new bridge over the river Tees and to execute other works in connection therewith to provide for the vesting of the said bridge and approaches and for other purposes.

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[4th June 1930.]

WHEREAS the construction of a bridge across the river Tees for vehicular and pedestrian traffic with approaches thereto and with a vertical lifting span for the passage of vessels navigating that river would be of public and local advantage :

And whereas the Minister of Transport has intimated that he will be prepared to make a grant of seventy five per centum of the approved expenditure incurred on the construction of such a bridge and the approaches and the mayor aldermen and burgesses of the county borough of Middlesbrough in the north riding of the county of York (hereinafter referred to as "the Corporation") and the county council of the administrative county of Durham (hereinafter referred to as "the County Council") have agreed to defray in equal proportions the remainder of such cost :

And whereas it is expedient that the construction of the said bridge and approaches by the Corporation

A.D. 1930. and the County Council (hereinafter jointly referred to
— as “ the two authorities ”) should be authorised and that
such powers as are hereinafter set forth should be conferred upon the Corporation and the County Council with regard to the raising of money for the purposes of this Act :

And whereas it is expedient that the further provisions contained in this Act should be enacted :

And whereas the objects aforesaid cannot be attained without the authority of Parliament :

And whereas estimates have been prepared of the cost of the acquisition of land and easements for and the execution of the works by this Act authorised and such estimates amount to six hundred and sixteen thousand and ten pounds :

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas plans and sections showing the lines and levels of the works authorised by this Act such plans also showing the lands required or which may be taken for the purposes or under the powers of this Act with a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands have been deposited with the respective clerks of the peace for the counties of Durham and the north riding of Yorkshire which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 and of the Borough Funds Act 1872 as extended by the Local Government Act 1888 and the County Councils (Bills in Parliament) Act 1903 as the same are respectively applicable to the Corporation and the County Council have been observed :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this

present Parliament assembled and by the authority of A.D. 1930.
the same as follows (that is to say):—

1. This Act may be cited as the Tees (Newport) Short title.
Bridge Act 1930.

2. The following Acts and parts of Acts so far as Incorporation of Acts.
the same are applicable for the purposes of and are not
varied by or inconsistent with the provisions of this
Act are incorporated with and form part of this Act
(that is to say):—

The Lands Clauses Acts (except section 127 of the
Lands Clauses Consolidation Act 1845);

Section 16. of the Railways Clauses Consolidation
Act 1845 and the provisions of that Act with
respect to the temporary occupation of lands
near the railway during the construction thereof
and with respect to mines lying under or near
the railway as amended in the case of an Act
relating to a railway company by the Mines
(Working Facilities and Support) Act 1923 and
in the application of the said enactments to
the improvement the expressions “ railway ” and
“ the centre of the railway ” shall mean the
bridge or other work (as the case may be) and
the centre line thereof as shown on the deposited
plans :

Provided that the bond required by section 85 of
the Lands Clauses Consolidation Act 1845 shall be under
the seal of either of the two authorities and shall be
sufficient without the addition of the sureties mentioned
in that section :

Provided also that for the purposes of this Act the
expressions “ the promoters of the undertaking ” and
“ the company ” in the Lands Clauses Acts and the
Railways Clauses Consolidation Act 1845 shall be
construed to mean the two authorities.

3. In this Act unless there be something in the Interpretation.
subject or context repugnant to such construction the
several words and expressions to which meanings are
assigned by the Acts wholly or partially incorporated
herewith have the same respective meanings And—

“ The borough ” means the municipal and county
borough of Middlesbrough;

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- “The Corporation” means the mayor aldermen and burgesses of the borough;
- “The county” means the administrative county of Durham;
- “The County Council” means the county council of the county;
- “The two authorities” means the Corporation and the County Council and includes either of the said authorities;
- “The north riding” means the administrative county of the north riding of York;
- “The North Riding County Council” means the county council of the north riding;
- “The river” means the river Tees;
- “The Tees Commissioners” means the Tees Conservancy Commissioners;
- “The bridge” means the bridge (including any carriageway and footway thereon) (Work No. 1) by this Act authorised;
- “The Middlesbrough approach” means and includes the approach road in the borough (Work No. 2) and the diversion (Work No. 2A) and the widening (Work No. 2B) by this Act authorised;
- “The Durham approach” means the approach road in the borough of Stockton-on-Tees in the county (Work No. 3) by this Act authorised;
- “The improvement” means the bridge and the Middlesbrough approach and the Durham approach and the works temporary or otherwise respectively connected therewith by this Act authorised;
- “The engineer” means the engineer for the time being responsible for the carrying out of the improvement;
- “Street” has the meaning assigned to that term in the Public Health Act 1875 and the Acts amending the same;
- “Two justices” means two justices acting together in petty sessions;

“ High-water mark ” means high-water mark of ordinary spring tides namely (at Middlesbrough) 8·60 feet above Ordnance datum; A.D. 1930.
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“ The Lands Clauses Acts ” means those Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919;

“ The arbitrator ” means the arbitrator to whom any question of disputed compensation may be referred under the provisions of this Act;

“ The town clerk ” and “ the borough accountant ” mean respectively the town clerk and the borough accountant of the borough and respectively include any person duly authorised to discharge temporarily the duties of those offices;

“ The general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough;

“ The county fund ” and “ the county rate ” mean respectively the county fund and the county rate of the county or of the north riding as the context may require;

“ Telegraphic line ” shall have the same meaning as in the Telegraph Act 1878.

4.—(1) A joint committee of the Corporation and of the County Council shall be appointed under and subject to the provisions of the Local Government Act 1888 and shall have power to exercise the powers of this Act conferred upon the two authorities (except those relating to the acquisition of lands and easements) and for this purpose and subject to such exception shall have power to make and carry into effect all such agreements and arrangements as under the provisions of this Act may be made and carried into effect by the two authorities. Appoint-
ment and
powers of
joint
committee.

(2) Any joint committee appointed as aforesaid shall consist of five members appointed by the Corporation and five members appointed by the County Council.

(3) The joint committee shall not without the consent of the two authorities authorise any alteration in the construction or design of the improvement which

A.D. 1930. — will materially increase the two sums of seventy-seven thousand pounds which the Corporation and the County Council by the sections of this Act of which the marginal notes are respectively "Power to Corporation to borrow" and "Power to County Council to borrow" are authorised to borrow.

(4) Any two or more members of the joint committee representing the Corporation or any two or more members of the joint committee representing the County Council may require any question relating to the carrying out of the improvement and any alteration or modification of the approved designs thereof or of the approved mode of carrying out any part of the improvement to be referred to the two authorities and in that case such works alteration or modification shall not be carried into effect unless and until the same shall have been approved by the two authorities or in case of difference settled by arbitration as provided by this Act.

(5) Should any vacancy arise on the joint committee in consequence of the death or incapacity or refusal to act of any member the authority whose representative he was shall nominate another person to fill such vacancy and such person shall occupy the same position and have the same power as the other members of the joint committee.

(6) A quorum of the joint committee shall be fixed by the joint committee but shall consist of at least two members from each of the two authorities.

Power to
execute
works.

5. The two authorities may subject to the provisions of this Act and in the lines and situations and within the limits of deviation shown on the deposited plans and according to the levels shown on the deposited sections construct the works hereinafter described with all necessary and proper footways carriageways approaches works and conveniences connected therewith (that is to say):—

Work No. 1 A bridge for vehicular and pedestrian traffic across the river commencing in the borough of Stockton-on-Tees in the county and terminating in the borough;

Work No. 2 An approach road to the bridge in the borough;

Work No. 2A A diversion of the footpath leading to A.D. 1930.
the footbridge over the Darlington and Saltburn
Branch of the London and North Eastern
Railway Company in the borough; —

Work No. 2B A widening of Ayresome Road in
the borough;

Work No. 3 An approach road to the bridge in the
said borough of Stockton-on-Tees.

6. Subject to the provisions of this Act the two Subsidiary
authorities may make on or in the banks bed soil and works
foreshore of the river and elsewhere in connection with affecting
the bridge and at or near any works or erections to be river.
made or put up by the two authorities for or connected
with the construction of the improvement and may place
and keep in the river either permanently or tempo-
rarily all such piles fenders booms dolphins pontoons
caissons stagings cofferdams embankments piers abut-
ments wharves walls fences drains stairs steps subways
buildings and other works and conveniences as they may
deem proper or find necessary or expedient and may use
in common with other bodies or persons entitled to such
use any public mooring places on the river :

Provided that no works under this section other
than the principal piers of the bridge shall be placed
or constructed in or on the river or the foreshores thereof
without the consent of the Tees Commissioners.

7. Subject to the provisions of this Act the two Power to
authorities may in the construction of the improvement deviate.
deviate laterally from the lines or situations of the
works by this Act authorised to any extent within the
limits of deviation defined on the deposited plans and
vertically from the levels defined on the deposited sections
to any extent not exceeding ten feet :

Provided that no deviation either lateral or vertical
below high-water mark shall be made without the
consent in writing of the Board of Trade.

8. Subject to the provisions of this Act and within Subsidiary
the limits of deviation defined on the deposited plans works.
the two authorities may make junctions with and may
alter the line or level of any street way stream or water-
course interfered with by or contiguous to the improve-
ment and may alter and interfere with any steps walls

A.D. 1930. gateways railings windows passages pipes and pavements
 — and they may execute any works for the protection of
 any adjoining land or buildings Any pipes paving
 metalling or materials in on or under any street so
 altered if in the borough shall vest in the Corporation
 and if in the county shall vest in the County Council
 In the exercise of the powers conferred by this section
 the two authorities shall cause as little detriment and
 inconvenience as circumstances admit to any company
 or person and shall make reasonable compensation for
 any damage caused to any company or person by the
 exercise of such powers and shall not alter the line
 or level of any stream or watercourse within the juris-
 diction of the Tees Commissioners without the consent
 of those commissioners.

Temporary
 stopping up
 of streets.

9. The two authorities for the purposes of this
 Act and during the construction of the improvement
 may in or upon the lands shown in connection therewith
 upon the deposited plans stop up or interfere with
 alter or divert temporarily all or any part of any road
 street place bridge stairs footpath way wharf stream
 or watercourse and may cause to be put up sufficient
 palisades hoardings bars posts and other erections and
 may construct temporary works for keeping any such
 road street place bridge stairs footpath way or wharf
 open for traffic and may make such orders for regulating
 the traffic as to them shall seem proper but shall not
 stop up or interfere with alter or divert all or any part
 of any wharf stream or watercourse within the juris-
 diction of the Tees Commissioners without the consent
 of those commissioners.

The two authorities shall provide reasonable access
 for all persons bona fide going to or returning from any
 house in any such road street or place and shall in each
 case do as little damage as possible and shall make
 full compensation to all persons injuriously affected by
 the exercise of the powers of this section.

Sewers or
 drains to be
 removed
 arched over
 or filled up.

10. The two authorities may cause to be removed
 arched over or filled up all culverts sewers or drains
 or parts thereof which shall be in or near any street
 which shall be interfered with for the construction of
 the improvement so far as shall appear to them necessary
 for executing the purposes of this Act Provided always
 that before removing or filling up any culvert sewer or

drain or part thereof as aforesaid (unless the same become unnecessary by reason of the purchase by or vesting in the two authorities of the property entitled to the use thereof) the two authorities shall where necessary cause to be made and built other good and sufficient culverts sewers and drains in substitution for the culverts sewers or drains or parts thereof which shall be removed or filled up and when made and completed the said culverts sewers and drains shall be under the same jurisdiction care management and direction as the existing culverts sewers or drains or parts thereof for which they are substituted. A.D. 1930.

11. Subject to the provisions of this Act the two authorities may for any purpose in connection with the improvement upon the lands acquired by them respectively under the powers of this Act and also in any street road or way within the limits of deviation defined on the deposited plans raise sink or otherwise alter the position of any watercourse water pipe or gas pipe belonging to or connected with any house or building and also any main or other pipe laid down or used by any company or person for carrying a supply of water or gas and also any pipe tube wire or apparatus laid down or placed for telegraphic postal or other purposes or for supplying electricity and may remove any other obstruction making proper substituted works during any alteration and causing as little detriment and inconvenience as circumstances admit and making reasonable compensation to any company or person who suffers damage by any such alteration Provided that before the two authorities alter the position of any main pipe tube wire or apparatus laid down or used by any such company or person they shall (except in cases of emergency) give to the company or person to whom the same belongs notice of their intention to do so specifying the time at which they will begin to do so such notice to be given seven days at least before the commencement of the work for effecting such alteration and such work shall be done under the superintendence of the company or person to whom such main pipe tube wire or apparatus belongs unless such company or person refuses or neglects to give such superintendence at the time specified in the notice for the commencement of such work or discontinues the same during the execution of such work and the two authorities

Alteration
of position
of water gas
and other
pipes.

A.D. 1930. — shall execute such work to the reasonable satisfaction of the engineer of such company or person. Provided also that the two authorities shall not cause any street road or way to be lowered or raised nor the position of any water or gas main or other pipe to be altered so as to leave over such main or pipe in any part a covering of less than two feet where the covering now existing is not less than two feet unless the two authorities shall in such case protect such main or pipe from frost or injury by artificial covering to the reasonable satisfaction of the engineer of the company or person to whom the same belongs or more than six feet where the covering now existing does not exceed six feet or more than such existing covering where the same exceeds six feet unless the two authorities in such case provide special means of access to the same to the reasonable satisfaction of the engineer of such company or person.

If any difference arises between the two authorities or the engineer and any such company or person touching the amount of any costs expenses or charges under the provisions of this Act to be paid by the two authorities to any such company or person or touching any work matter or thing with reference to such mains or other pipes under such provisions to be done or executed by the two authorities or the mode of doing or executing the same such difference shall be settled by an engineer to be agreed upon by the two authorities and such company or person or failing agreement by such engineer as shall on the application of the two authorities or such company or person be named by the President of the Institution of Civil Engineers whose decision shall be final and binding and the expenses of the reference shall be borne as the referee may direct.

The two authorities shall not raise sink or otherwise alter the position of any telegraphic line or other property of the Postmaster-General except under and subject to the provisions of the Telegraph Act 1878.

For protection of
Postmaster-General.

12.—(1) The two authorities shall in constructing the bridge (Work No. 1) and the approach roads (Works Nos. 2 and 3) provide either a space two feet wide and two feet deep or a space of equivalent content to such last mentioned space in one of the footways of the approach roads and of the fixed portions of the bridge

for the accommodation of telegraphic lines of the Postmaster-General. The accommodation shall be provided in accordance with plans sections and particulars to be previously submitted to and reasonably approved by the Postmaster-General. Provided that if within one month of the receipt of the said plans sections and particulars the Postmaster-General shall not have intimated to the two authorities his disapproval thereof or made any requirement with respect thereto he will be deemed to have approved the same. Provided further that any extra expense which the two authorities may reasonably incur in complying with the provisions of this subsection shall be borne and paid by the Postmaster-General.

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(2) Nothing in this Act shall alter prejudice or affect any of the rights and powers of the Postmaster-General under the provisions of the Telegraph Acts 1863 to 1926 in so far as affects the bridge other than the vertical lifting span thereof.

13. Subject to the provisions of this Act and within the limits of deviation defined on the deposited plans the two authorities may for the purposes of and in connection with the powers granted to them by this Act alter and pull down any houses buildings and erections and may stop up and appropriate the site and soil of any streets ways roads courts passages or alleys shown upon the said plans making all reasonable compensation to any person who suffers damage by any such stopping up as aforesaid.

Power to
stop up
streets.

14. On the stopping up (otherwise than temporarily) of any street or part of a street under the powers of this Act all rights of way over the same shall be extinguished and the site and soil thereof shall if in the borough vest in the Corporation and if in the county shall vest in the County Council but the two authorities shall not stop up any street or portion thereof nor shall either of the two authorities appropriate the site and soil of any street or portion thereof unless the Corporation or the County Council are owners in possession of all houses and lands on both sides of the street or portion to be stopped up except so far as the owners lessees and occupiers of such houses and lands may otherwise agree.

Vesting of
soil of
streets
stopped up.

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Under-
pinning of
houses
near
works.

15. And whereas in order to avoid in the execution and maintenance of works authorized by this Act injury to the houses and buildings within one hundred feet of those works it may be necessary to underpin or otherwise strengthen the same Therefore the two authorities at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say) :—

- (1) At least ten days' notice shall unless in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened :
- (2) Each such notice if given by the two authorities shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the town clerk :
- (3) If any owner lessee or occupier of any such house or building or the two authorities (as the case may require) shall within seven days after the giving of such notice give a counter-notice in writing that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of the necessity shall be referred to the arbitration of an engineer (in this section referred to as "the referee") to be agreed upon or in case of difference appointed at the instance of either party by the Minister of Transport and the Arbitration Act 1889 shall apply to the reference :
- (4) The referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by the two authorities or such owner lessee or occupier shall prescribe the mode in which the same shall be executed

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Extinction
of private
rights of
way.

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date of the acquisition of such lands by the two authorities if the two authorities shall by resolution so determine and give notice in writing of such their resolutions to the owner of any right of way referred to therein.

(2) Provided that the two authorities shall make compensation to all persons interested in respect of any rights extinguished under the provisions of this section.

Retention
and
disposal of
lands.

17.—(1) Notwithstanding anything in any other Act or Acts or otherwise to the contrary the two authorities may retain hold and use for such time and for such purpose as they may think fit or may sell lease (whether in possession or reversion) exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and may sell exchange or dispose of any rents reserved on the sale lease exchange or disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

(2) The two authorities shall not (unless the Minister of Health otherwise direct) sell lease exchange or otherwise dispose of any such lands or interests therein except at the best price or on the best terms which can be obtained for the same but a purchaser or lessee shall not be concerned to inquire whether the direction of the said Minister is necessary or has been obtained.

(3) Nothing in this section contained shall release the two authorities or any person purchasing or acquiring any lands from them under this section from any rents covenants restrictions reservations terms or conditions made payable by or contained in any conveyance lease or other deed or instrument by which any such lands are acquired by the two authorities or any person from or through whom the two authorities may derive title to the same but all such rents covenants restrictions reservations terms and conditions shall remain and be of as full force and effect and may be recovered exercised enjoyed and enforced in like manner and to the same extent as if this Act had not been passed.

18.—(1) So long as any lands remain to be acquired by either of the two authorities under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on re-sale or exchange or by leasing in pursuance of the powers of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the two authorities shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister of Health.

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Proceeds of
sale of
surplus
lands.

(2) Provided that—

- (a) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase;
- (b) the borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

19. Subject to the provisions of this Act the two authorities may cause such parts of the improvement to be laid out for carriageway and such parts thereof for footways as they may think proper and may from time to time extend or reduce such carriageway and footways and may upon the lands acquired by or vested in them under the powers of this Act and within the limits of deviation defined on the deposited plans construct and provide such works and conveniences as they may think proper for the purpose of the improvement and in laying out forming and altering such carriageway and footways and works the two authorities may in addition to the powers by this Act conferred exercise the same powers and authorities as are vested in and shall be subject to the same liabilities only in respect thereof as are imposed upon any urban or road authority when they stop up temporarily any road or thoroughfare or any part thereof in the repairing or repaving of any street.

Carriage-
ways and
footways
on improve-
ment.

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Works be-
low high-
water mark
to be sub-
ject to
approval of
Board of
Trade.

20.—(1) Subject to the provisions of this Act any work authorised by this Act shall only be constructed so far as the same shall be on under or over tidal waters or tidal lands below high-water mark in accordance with plans and sections approved by the Board of Trade under the hand of one of the secretaries or assistant secretaries of the Board of Trade and subject to such restrictions and regulations as the said Board may prescribe before such work is begun.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the cost of the two authorities and the amount of such cost shall be a debt due from the two authorities to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt.

Survey of
works by
Tees Com-
missioners.

21. If at any time the Tees Commissioners deem it expedient for the purposes of this Act to order a survey and examination of the foundations of the bridge and other works by this Act authorised or of the intended sites of such works or of the bridge during or after construction or of any work connected therewith on in over through or across tidal waters or tidal lands in the river or the banks of the said river within the jurisdiction of the Tees Commissioners the two authorities shall grant to the Tees Commissioners and their servants every facility for such survey and examination and the two authorities shall defray the expense of any such survey and examination and the amount thereof shall be a debt due to the Tees Commissioners and be recoverable either as an ordinary debt or summarily.

Survey of
works by
Board of
Trade.

22. If at any time the Board of Trade deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the two authorities under the powers of this Act which shall be on under or over tidal waters or tidal lands below high-water mark or of the site upon which it is proposed to construct any such work the two authorities shall defray jointly the expense of the survey and examination and the amount thereof shall be a debt due from the two

authorities to the Crown and shall be recoverable either as a debt due to the Crown or by the Board of Trade summarily as a civil debt. A.D. 1930.
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23.—(1) Where any work constructed by the two authorities under the powers of this Act on in over through or across tidal lands or a tidal water below high-water mark is abandoned or suffered to fall into decay the Board of Trade may by notice in writing either require the two authorities at their own expense to repair and restore such part of such work as is situate below high-water mark or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such an extent and within such limits as the Board of Trade may think proper. Abatement
of work
abandoned
or decayed.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above high-water mark and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Board of Trade may include any such part of such work or any portion thereof in any notice under this section.

(3) If during the period of thirty days from the date when the notice is served upon the two authorities they have failed to comply with such notice the Board of Trade may execute the works required to be done by the notice at the expense of the two authorities and the amount of such expense shall be a debt due from those authorities to the Crown and shall be recoverable either as a debt due to the Crown or summarily as a civil debt.

24.—(1) The two authorities during the whole time of the construction alteration or extension of such part of the works by this Act authorised as shall be below high-water mark shall exhibit and keep burning every night from sunset to sunrise at or near the said part of the said works such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade shall from time to time require or approve. Lights on
works
during con-
struction
&c.

(2) If the two authorities fail to comply in any respect with the provisions of this section the two authorities shall be liable or jointly liable on summary conviction to a penalty not exceeding twenty pounds and

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in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Permanent
lights on
works.

25.—(1) After the completion of the works below high-water mark by this Act authorised the two authorities shall at the outer extremities of those works exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House of Deptford Strond shall from time to time direct.

(2) If the two authorities fail to comply in any respect with the provisions of this section they shall be jointly liable on summary conviction to a penalty not exceeding twenty pounds and in the case of a continuing offence to an additional penalty not exceeding two pounds for every day on which after conviction thereof they so fail.

Provision
against
danger to
navigation.

26.—(1) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark the two authorities shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House of Deptford Strond and shall apply to that corporation for directions as to the means to be taken.

(2) If the two authorities fail to comply in any respect with the provisions of this section they shall be jointly liable on summary conviction to a penalty not exceeding ten pounds and in the case of a continuing offence to an additional penalty not exceeding one pound for every day during which they omit after conviction thereof so to comply or refuse or neglect to obey any direction given in reference to the means to be taken.

Restriction
as to land-
ing places.

27. Except for the purpose of landing or loading from or into vessels not arriving from or departing for foreign parts any goods or materials required for or used in the construction maintenance or repair of the improvement none of the works constructed under the powers of this Act shall be used as a landing or loading place for goods or passengers conveyed or intended to be conveyed in any vessel.

28. Notwithstanding anything contained in this Act or shown on the deposited plans or the deposited sections—

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 As to construction of bridge.

- (1) The bridge shall be so constructed that the clear headway between the underside of the vertical lifting span thereof when in its normal lowered position and high-water mark is not less than twenty-one feet and that the clear headway between the underside of such vertical lifting span when raised to its maximum height and high-water mark is not less than one hundred and twenty feet :
- (2) The bridge shall be so constructed that the main span thereof shall be a vertical lifting span of a navigable width of not less than two hundred and fifty feet and the Corporation shall in constructing the bridge provide and fix all such apparatus machinery and appliances as shall be necessary for the raising and lowering of the vertical lifting span :
- (3) The bridge shall be constructed in accordance with the designs approved by the two authorities subject to such modification (if any) as may from time to time be made in accordance with the provisions of the section of this Act of which the marginal note is " Appointment and powers of joint committee."

29. The bridge (Work No. 1) by this Act authorised shall be so constructed as to be capable of being raised to its maximum height within a period of two and a half minutes and shall be maintained used and worked at all times so that such raising thereof shall not occupy a longer time than two and a half minutes The two authorities shall for every breach of the provisions of this section except in case of force majeure be liable to a penalty of five pounds which may be recoverable by the Tees Commissioners summarily without prejudice to the rights of all persons to recover (except in case of force majeure) damages or compensation in respect of any injury damage or delay to such persons or their property arising from or by reason of such raising of the bridge occupying a longer time than two and a half minutes and the two authorities shall indemnify the Tees Commissioners against all damages or compensation recovered by any such person against the Tees Commissioners.

Regulating
 time of
 raising
 bridge.

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Period for
completion
of improve-
ment.

30. The improvement shall be carried out with all convenient speed and if it be not completed within seven years from the passing of this Act then on the expiration of that period the powers of the two authorities under this Act for the construction thereof shall cease except so far as the same shall then have been completed.

Power to
take lands.

31. Subject to the provisions of this Act the two authorities may enter upon take and use all or any of the lands shown on the deposited plans and described in the deposited book of reference which they may require for the purposes of the improvement including the improvement and development of frontages and of the lands abutting on or adjacent to any street or of recoupment or exchange or for other purposes of this Act.

Benefits to
be set off
against
compensa-
tion.

32. In estimating the amount of compensation or purchase money to be paid by the two authorities in respect of the acquisition under this Act of any part of the lands of any person or any easement or right in such lands the enhancement in value of the adjoining lands of such person not so acquired or of any other lands of such person which are continuous with such adjoining lands or of any lands in which only an easement or right is acquired arising out of the execution of the works authorised by this Act shall be fairly estimated and shall be set off against the said compensation or purchase money.

Power to
acquire
additional
lands by
agreement.

33. In addition to the other lands which the two authorities are by this Act authorised to purchase and acquire they may purchase take on lease or acquire by agreement and may hold for the purposes of this Act any lands not exceeding three acres :

Provided that nothing in this Act shall exonerate the two authorities from any indictment action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any lands purchased or used by them under the provisions of this section.

Owners &c.
may be
required to
sell parts
only of cer-
tain pro-
perties.

34. And whereas in the exercise by the two authorities of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the required purposes and that such portions or some other portions less than the whole can be severed from the remainder of the said

properties without material detriment thereto Therefore A.D. 1930.
the following provisions shall have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the schedule to this Act and whereof a portion only is required for the purposes of the two authorities or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties" :
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the town clerk that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the two authorities such portion only without the two authorities being obliged or compellable to purchase the whole the two authorities paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the town clerk allege that such portion cannot be so severed the arbitrator shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the two authorities have compulsory powers of purchase) can be so severed :
- (4) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the two authorities the portion so determined to be severable without the two authorities being obliged or compellable

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to purchase the whole the two authorities paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator :

- (5) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the determination of any matters under this section shall be borne and paid by the owner :
- (6) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the two authorities may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the two authorities in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this

section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845. A.D. 1930.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

35. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may (if they think fit) subject to the provisions of those Acts and of this Act grant to the two authorities any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Persons under disability may grant easements &c.

36. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the two authorities after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices acting for the north riding or the county (as the case may be) for the correction thereof and if it shall appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the north riding or the clerk of the peace for the county (as the case may require) and a duplicate thereof shall also be deposited with the town clerk or the town clerk of the borough of Stockton-on-Tees (as the case may require) and such certificate and duplicate shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the two authorities to take the lands and execute the works in accordance with such certificate. Correction of errors in deposited plans and book of reference.

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Power to
enter upon
property for
survey and
valuation.

37. The two authorities and their surveyors officers and workmen and any person duly authorised in writing under the hand of the town clerk or the clerk to the County Council may at all reasonable times in the day upon giving in writing for the first time twenty-four hours' and afterwards twelve hours' previous notice enter upon and into the lands by this Act authorised to be taken or used or any of them for the purpose of surveying and valuing the said lands and buildings without being deemed trespassers and without being subject or liable to any fine penalty or punishment on account of entering or continuing upon any part of the said lands and buildings.

Further
powers of
entry.

38. The provisions of section 106 (Power of entry on land acquired) of the Housing Act 1925 so far as they relate to lands acquired for the purposes of Part III of that Act shall apply to the lands which the two authorities are by this Act authorised to acquire as if those provisions were with the necessary alterations re-enacted in this Act.

Compensa-
tion in case
of recently
acquired
interest.

39. For the purpose of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the following provisions shall apply and have effect (that is to say) :—

(1) The arbitrator shall not take into account any building erected or any improvement or alteration made or any interest in land created after the nineteenth day of November one thousand nine hundred and twenty-nine and before the date of the passing of this Act if in the opinion of the arbitrator the erection of the building or the making of the improvement or alteration or the creation of the interest in respect of which the claim is made was not reasonably necessary and was carried out with a view to obtaining or increasing compensation under this Act :

(2) Subject as is hereinafter in this section provided the arbitrator shall not take into account—

(a) any building erected after the date of the passing of this Act or any improvement or alteration of any premises (other than any

improvement or alteration reasonably necessary for properly maintaining such premises) made after that date which in the opinion of the arbitrator materially enhances the value of such premises; or

(b) any interest in land greater than that of a quarterly tenant created after the date of the passing of this Act :

- (3) If at any time after the date of the passing of this Act and before the expiration of the period limited by this Act for the compulsory purchase of lands any person being the owner of or having any estate or interest in any premises which are liable to be acquired compulsorily under the powers of this Act gives notice in writing to the two authorities of his intention to erect any building upon or to make any improvement or alteration of or to create any such new interest as aforesaid in those premises (such intended building improvement alteration or new interest being specifically described in the notice) and the two authorities do not within one month after receiving any such notice serve upon such person notice to sell and convey or release his estate or interest in the said premises but serve such notice at any time after the expiration of of the said period of one month—

(a) subsection (2) of this section shall not apply with respect to the building improvement alteration or new interest described as aforesaid; and

(b) subsection (1) of this section shall apply with respect to the said building improvement alteration or new interest as if the same had been erected made or created after the said nineteenth day of November and before the date of the passing of this Act :

- (4) The two authorities shall forthwith after the passing of this Act send by post or deliver a copy of this section to all persons named in the deposited book of reference having an interest greater than that of a yearly tenant in any lands which are liable to be acquired compulsorily under the powers of this Act.

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Agreements
with owners
of property.

40. Subject to the provisions of this Act the two authorities may in connection with the powers granted to them by this Act enter into and carry into effect agreements with any owners of property or other persons interested in lands houses or property shown or partly shown on the deposited plans with respect to the purchase by the two authorities of any such lands houses or property or any rights or easements in over or affecting the same for such consideration being a sum of money in gross or a grant of land or partly money and partly land as may be agreed upon between the two authorities and such owners or other persons.

Power to
reinstate
owners of
property.

41. The two authorities may enter into and carry into effect agreements with the owners of or other persons interested in any land which may be acquired under the provisions of this Act or which may be in the neighbourhood of any of the works authorised by this Act with respect to the reinstatement of such owners or other persons and with respect to the exchange of lands for that purpose and the two authorities may pay or receive money for equality of exchange.

Period for
compulsory
purchase of
lands.

42. The powers of the two authorities for the compulsory purchase or taking of lands or easements for the purposes of this Act shall cease on the first day of October nineteen hundred and thirty-three.

Power to
sell
materials.

43. The two authorities may sell or dispose of any materials taken from any property acquired by them under the powers of this Act and not required for the purposes of the improvement and also all materials in under or upon any road street or other place altered by them for the purposes of this Act and any materials obtained in the alteration or interference with any drain or sewer which are vested in the two authorities under the powers of this Act and the materials (if any) obtained in the course of the improvement.

For pre-
venting in-
terference
with navi-
gation.

44.--(1) In constructing executing maintaining and working the bridge the two authorities shall not interrupt the navigation of the river and shall not to any greater extent than is necessary interfere with or obstruct such navigation and the navigable width of two hundred and fifty feet mentioned in subsection (2) of the section of this Act of which the marginal note is "As to construction of bridge" shall so far as practicable

be maintained during the construction repair or alteration of the bridge : A.D. 1930.

Provided that no curtailment of the navigable width of two hundred and fifty feet shall (except in case of emergency) be made until after seven days' notice in writing shall have been given to the Tees Commissioners and then only with the consent of the Tees Commissioners Provided that such consent shall not be unreasonably withheld and that any question arising between the two authorities and the Tees Commissioners as to whether such consent is unreasonably withheld shall be determined by the Board of Trade.

(2) The vertical lifting span of the bridge shall be used maintained and worked in such a manner as to give absolute preference and priority to all vessels boats and craft navigating or employed on the river over all traffic passing over the bridge.

If the two authorities at any time fail to give such absolute preference and priority to all vessels boats and craft navigating or employed on the river they shall for every such offence be liable to a penalty not exceeding fifty pounds without prejudice to the right to enforce the requirements of this section and to the rights of all persons to recover damages or compensation in respect of any injury or damage to such persons or their property arising from or by reason of such failure or otherwise by reason of the working of the bridge or the vertical lifting span thereof and any such penalty may be recovered by the Tees Commissioners summarily :

Provided that the master or person having command or charge of any vessel desiring to have the vertical lifting span of the bridge raised shall before the vessel comes within half a mile of the bridge show or make a signal in accordance with the byelaws to be made in pursuance of this Act and referred to in subsection (3) of this section and shall repeat such signal when the vessel comes within seven hundred yards of the bridge which signal shall indicate to the person in charge of the bridge that such master or person requires to have the vertical lifting span of the bridge raised and if any such master or person shall show or make any such signal as aforesaid when the raising of the vertical lifting span of the bridge was not reasonably necessary for the

A.D. 1930. passage of the vessel under his command or charge he
— shall be liable to pay to the two authorities a sum not
exceeding fifty pounds :

Provided further that if any such master or person shall be guilty of wilful neglect or unnecessary delay in passing or preparing to pass through the bridge he shall be liable to pay to the two authorities a sum not exceeding fifty pounds.

(3) The byelaws with respect to signals referred to in subsection (2) of this section shall be made by the Tees Commissioners under their existing statutory powers in that behalf and no proceedings for the enforcement of any such byelaws shall be commenced by the two authorities or either of them except with the previous consent of the Tees Commissioners.

Byelaws for
bridge.

45.—(1) Before the bridge is opened for public traffic the two authorities shall make byelaws regulating the times and mode of raising and lowering the vertical lifting span thereof for the passage of vessels along the river and of traffic along the bridge and the two authorities may from time to time make further byelaws in relation to the matters aforesaid and also—

- (a) for prohibiting the conveyance upon the bridge of any goods which may in the opinion of the two authorities be injurious to or prejudicially affect the use of the same or the traffic to be carried thereon or endanger the safety of the bridge or the working thereof or the passenger and other traffic carried thereon;
- (b) for regulating the conduct of all persons who use and the duties of the officers and servants of the two authorities who shall be employed in or about the bridge;
- (c) for prohibiting the use of the bridge in certain cases and by certain engines carriages or vehicles or other classes of traffic;
- (d) for providing that the bridge may be temporarily closed to road traffic for repairs or other emergencies;
- (e) generally for regulating and controlling the use of the bridge;

and the two authorities may from time to time alter

and repeal any byelaws so made by them and may by any such byelaws impose such reasonable penalties as they think fit for every breach thereof not exceeding five pounds for a first offence and ten pounds for a second or any subsequent offence. A.D. 1930.

(2) No byelaws under this section except such as relate solely to the officers or servants of the two authorities and do not impose penalties for breaches thereof shall come into operation until the same have been approved by the Minister of Transport. Provided that in the case of any byelaws which the Minister of Transport in consultation with the Board of Trade shall deem primarily to concern the interests of navigation the provisions of this section shall apply as if the Board were substituted for the Minister and the allowance and approval of any such byelaws by the Minister of Transport or the Board of Trade respectively shall be sufficient evidence of compliance with the provisions of this section.

(3) Not less than one month before submitting to the Minister of Transport for approval any byelaws made under the provisions of this section the two authorities shall advertise in two or more newspapers of which one shall be a newspaper circulating in the north riding and another shall be a newspaper circulating in the county the intention of the two authorities to make such byelaws and shall send a copy (on payment of a sum not exceeding one shilling per copy) to any company body or person making application for a copy and before approving any such byelaws the said Minister shall consider any representations with reference thereto which may be made to him by any company body or person appearing to the Minister to be affected by such byelaws within six weeks from the date of the publication of the last of the said advertisements.

(4) Any person offending against any byelaw made and approved under the provisions of this section shall be liable on summary conviction to a penalty not exceeding the amount of the penalty imposed by the byelaw in respect of the breach thereof.

(5) Any byelaws made and approved under the provisions of this section may be enforced by the Corporation or the County Council.

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(6) In this section the expression "the bridge" means and includes the bridge and the approaches thereto by this Act authorised.

Regulating
mooring of
vessels near
bridge.

46. Subject to the provisions of this Act and except so far as may be necessary for the purposes thereof during the construction and after the completion of the bridge no vessel or other craft shall be anchored or moored under the bridge or in or across the fairway leading to the vertical lifting span of the bridge for a distance of two hundred yards on either side of the bridge and any person wilfully offending against this provision after receiving due notice thereof (such notice being given by verbal warning or by placards affixed to the bridge) shall be liable to a penalty not exceeding ten pounds for each offence or ten pounds for every day during which the offence continues after conviction therefor :

Provided that this section—

- (i) shall not apply to any vessels or other craft (which shall in this and the next two succeeding paragraphs of this proviso be deemed to be included within the expressions "vessel" or "vessels") anchoring or mooring at any wharf or landing place (whether existing at the passing of this Act or thereafter constructed) whether such vessels are anchored or moored immediately alongside of such wharf or landing place or immediately alongside another vessel which is anchored or moored as last aforesaid;
- (ii) shall not prevent any vessel when approaching or leaving any wharf or landing place (whether existing at the passing of this Act or thereafter constructed) from swinging round under and in the line of the bridge if it is necessary so to swing in order to enable any such vessel to approach or leave such wharf or landing place safely;
- (iii) shall not apply to any vessels using the wharves or landing places for the time being belonging to the Corporation; and
- (iv) shall not apply to any dredgers steam hoppers barges or other vessels or craft used in

dredging operations by the Tees Commissioners A.D. 1930.
but any such dredging in the river across
the line of the bridge or across the fairway
leading to the vertical lifting span thereof
for a distance of two hundred yards on either
side of the bridge shall be carried out so as
not unnecessarily to interfere with the use of
the said vertical lifting span.

47. The Corporation may supply electrical energy As to supply
for working the vertical lifting span of the bridge under of electrical
the Middlesbrough Electricity Orders 1898 to 1928 and energy for
the Corporation and the two authorities may enter into bridge.
and carry into effect agreements with respect to such
supply :

Provided that the said electrical energy shall be
supplied and the vertical lifting span of the bridge shall
be worked in such manner as to prevent any interference
(whether by induction or otherwise) with any telegraphic
line belonging to or used by the Postmaster-General or
with telegraphic communication by means of any such
line.

48. Notwithstanding anything in any Act to the No works
contrary it shall not be lawful for any person to enter upon on bridge
or interfere with the bridge or to break up the carriage- except with
way and footways over the same for the purpose of consent of
executing any work whatsoever therein thereon or two
thereunder except with the consent of the two authori- authorities.
ties in writing and in accordance with such terms
and conditions either as to the payment of any rent or
other valuable consideration or otherwise as the two
authorities may determine.

49.—(1) When the improvement is completed the Improve-
engineer shall issue a certificate thereof to the two ment to
authorities and as soon as practicable after the receipt form public
of such certificate each of the two authorities shall pass street.
a resolution declaring the improvement open for public
traffic.

(2) As from the date or latest date of the passing
of the said resolutions so much of the improvement as
has been laid out as carriageway or footway shall form
a street and may be used by the public accordingly.

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(3) A copy of either of the said resolutions certified under the hand of the town clerk or the clerk to the County Council (as the case may require) shall in all proceedings and for all purposes be admissible and received as evidence that such resolution was duly passed.

Power to
employ per-
sons for
purposes of
Act.

50. The two authorities may employ and pay all such persons as they may deem necessary or expedient for the purposes of this Act including the working of the apparatus machinery and appliances for the raising and lowering of the vertical lifting span of the bridge.

Bridge-
master and
other em-
ployees.

51.—(1) The two authorities shall employ and pay a bridge-master and such other employees as may be reasonably necessary and sufficient for securing compliance with the byelaws to be made pursuant to the section of this Act of which the marginal note is "Byelaws for bridge" and for raising and lowering the vertical lifting span of the bridge in accordance with the provisions of those byelaws and this section.

(2) The said bridge-master or some person duly authorised by the two authorities to act as a substitute for or to discharge temporarily the duties of such bridge-master and also such other employee or employees (if any) as may be necessary for raising and lowering the vertical lifting span of the bridge shall be in attendance at the bridge at all times whether by day or night.

Signals.

52.—(1) The byelaws to be made pursuant to the section of this Act of which the marginal note is "Byelaws for bridge" shall prescribe a code of signals as may be directed by the Corporation of Trinity House of Deptford Strond for the raising and lowering of the vertical lifting span of the bridge adapted for use by day or by night and visible (when atmospheric conditions permit) at least half a mile above and below the bridge.

(2) Throughout the duration of any fog which in the reasonable opinion of the said bridge-master renders the bridge invisible for a distance of half a mile in either direction or such less distance as may at any time and from time to time be prescribed by the Corporation of Trinity House of Deptford Strond on the application of the two authorities the two authorities shall cause a sufficient and effective gong bell siren or other sound signal to be sounded

from the bridge of such type and character as the Corporation of Trinity House of Deptford Strond shall from time to time direct. A.D. 1930.
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53. The two authorities shall at all times keep at the bridge and in accordance with any requirements made by the Board of Trade a sufficient number of lifebuoys with lanyards and life lines in good order and fit and ready for use. Lifebuoys
&c. to be
kept.

54. All street lamps or other lights used upon the bridge which are not required in connection with the navigation of the river shall be effectually screened on the side facing the river as may be directed by the Corporation of Trinity House of Deptford Strond. As to lamps
on bridge.

55. As from the date or latest date of the passing of the resolutions referred to in the section of this Act of which the marginal note is "Improvement to form public street" unless and except so far as may be otherwise agreed between the two authorities— Vesting and
mainten-
ance of im-
provement.

(a) the bridge shall become and be vested in the two authorities jointly as a county bridge under the joint jurisdiction control and management of the two authorities and shall subject to the provisions of this Act be maintained by them accordingly at their joint expense;

(b) the Middlesbrough approach shall be vested in the Corporation as a county road and shall subject to the provisions of this Act be maintained accordingly by and at the expense of the Corporation; and

(c) the Durham approach shall be vested in the County Council as a county road and shall subject to the provisions of this Act be maintained accordingly by and at the expense of that council.

56. From and after the opening of the bridge for public traffic the Corporation may discontinue the existing ferry across the river between Newport and Billingham and shall be relieved from all obligations to maintain the same and they may sell and dispose of the ferry boats pontoons landing stages and property used in connection with the ferry and all moneys obtained by such sale shall be carried by them to the sinking fund or Power to
discontinue
ferry.

A.D. 1930. — funds provided for the repayment of moneys borrowed by them for the purposes of their ferry undertaking or they may from time to time suspend and again resume the working of the ferry whenever they may see fit to do so. From and after the discontinuance or suspension of the working of the ferry all moneys borrowed by the Corporation which are charged upon the security of the tolls which the Corporation are entitled to demand and take in respect of the said ferry and upon the general rate fund shall be charged upon the general rate fund and general rate :

Provided that the provisions of the section of this Act of which the marginal note is " Abatement of work abandoned or decayed " shall apply to any landing stages or other works below high-water mark as if the Corporation were named therein instead of the two authorities.

As to cost
of improve-
ment.

57. The cost of constructing the improvement and of the acquisition of any necessary lands and easements therefor and all other costs and expenses connected with the construction of the improvement so far as the same are payable by the two authorities shall be borne by them in equal shares and any capital sum received by them or either of them from the Minister of Transport or from any county council or local or road authority towards such cost shall be accounted for and shall be applied towards the reduction of such cost.

As to
payments
to be made
in respect
of improve-
ment.

58. From and after the commencement of the construction of the improvement the engineer shall have full power to determine from time to time during the progress of the works what sums ought to be paid on account under the provisions of this Act and the two authorities shall pay the amount so determined to be payable including in such payment an equal moiety of so much of the sums so determined as may be repayable by the Minister of Transport. The engineer shall also have full power to determine finally upon the completion of the improvement the total cost thereof to be borne by the two authorities in equal shares under such provisions and every such determination shall be binding on the two authorities. If before such final determination either of the two authorities shall have paid more than their due proportion of the total amount of the costs and expenses connected with the carrying

out of the improvement the amount so paid in excess of such due proportion shall be a debt due to such authority from the other authority and such authority shall be entitled to claim and recover from the other authority the amount so paid in excess accordingly. A.D. 1930.

59. From and after the opening for traffic of the bridge— Maintenance of bridge.

(a) the cost of the maintenance renewal repair and working of the apparatus machinery and appliances for the raising and lowering of the vertical lifting span of the bridge (including the remuneration of any persons employed by the two authorities for working such apparatus machinery and appliances);

(b) all costs charges and expenses relative to the maintenance and keeping in proper repair working order and condition of the bridge and the said apparatus machinery and appliances and to the management of the bridge and the vertical lifting span; and

(c) the cost of maintaining renewing and keeping in repair any banks walls or other defences against water and all other expenses incurred in meeting any liability arising out of the use or possession of any lands acquired by the two authorities for the purposes of the improvement

shall be borne by the two authorities in equal shares and any sums received by them or either of them from the Minister of Transport or any county council or local or road authority towards such cost shall be accounted for and applied towards the reduction thereof.

60. The two authorities shall be answerable for all accidents damages and injuries happening through their act failure or default or through the act failure or default of any person in their employment by reason or in consequence of the bridge or the works connected therewith and that whether during or subsequent to the construction of such bridge or works and shall save harmless all companies bodies or persons collectively and individually and their officers and servants from all damages and costs in respect of such accidents damages or injuries. Two authorities to be responsible for all damages.

A.D. 1930.

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For pro-
tection of
Tees Valley
Water
Board.

61. For the protection of the Tees Valley Water Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed between the two authorities and the board apply and have effect (that is to say):—

(1) In this section "apparatus" means and includes all or any mains pipes or apparatus belonging to the board:

(2) The board shall be deemed to be a company or person for the purposes of the section of this Act of which the marginal note is "Alteration of position of water gas and other pipes" and any notice served upon the board in pursuance of that section shall be accompanied by a plan and section of the work to which the notice relates so far as it affects any apparatus for the reasonable approval of the board and such work shall not be executed except in accordance with such plan and section as so approved or as determined by arbitration under this section. Provided that in the event of such plan and section not being objected to within seven days from the receipt thereof they shall be deemed to have been approved by the board:

(3) If upon any such notice as is referred to in subsection (2) of this section being served upon the board the board shall desire themselves to execute any work involved in the alteration of the position of any apparatus and shall give notice thereof in writing to the two authorities before they commence the work the board may themselves carry out the work and all reasonable expenses properly incurred by them in connection therewith shall be repaid to them by the two authorities:

(4) The section of this Act of which the marginal note is "Alteration of position of water gas and other pipes" shall in its application to the board be read and have effect as if the words "three feet" were substituted for the words "two feet" wherever they occur in the said section:

- (5) Any difference which shall arise under this section between the two authorities and the board shall be referred to and settled by an arbitrator to be appointed on the application of either party (after notice thereof in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such reference to and settlement by arbitration. A.D. 1930.
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62. The following provisions shall unless otherwise agreed between the two authorities and the Tees Commissioners (in this section referred to as “the commissioners”) apply and have effect:— For protection of
Tees Com-
missioners.

- (1) All works to be constructed on in under or over the foreshores or banks of the river within the jurisdiction of the commissioners under the powers of this Act shall be carried out in accordance with plans and sections and other sufficient particulars respecting the construction of the bridge and works connected therewith the working of the vertical lifting span and the position and depth of the foundations of the bridge which plans sections and particulars shall be delivered to the commissioners at their office in Middlesbrough and shall be approved of by them under the hand of their engineer before the works are commenced Provided always that if the commissioners shall for the period of one month after the delivery of the said plans sections and particulars fail to signify to the two authorities in writing their approval with or without alteration or their disapproval thereof they shall be deemed to have approved the said plans sections and particulars or if within the said period the commissioners disapprove of the same or approve of the same with alterations and the two authorities consider such disapproval or alterations or any of them unreasonable the question in difference shall failing agreement be determined by the Board of Trade and thereupon the works shall be carried out according to

A.D. 1930.
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the plans sections and particulars as settled and approved by the Board of Trade and any reasonable costs incurred by the commissioners in approving such plans sections and particulars shall be paid by the two authorities to the commissioners :

- (2) All works of or connected with the construction maintenance renewal removal or repair of the bridge shall be carried out so as not to interfere with the navigation of the river or any work of the commissioners to any greater extent than is necessary and to the reasonable satisfaction of the engineer of the commissioners and his reasonable requirements in regard to the times and modes of carrying out any such works shall be complied with by the two authorities and any question arising under this subsection shall be determined by the Board of Trade and when any such works have been constructed the two authorities shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the consent and approval in writing of the engineer of the commissioners :
- (3) If any work be commenced or carried out contrary to the provisions of this Act the commissioners may remove and abate the same and restore the site thereof to its former condition at the costs and charges of the two authorities and the amount of all such costs and charges shall be a debt due from the two authorities to the commissioners and shall be recoverable accordingly as an ordinary debt or at the option of the commissioners summarily as a civil debt :
- (4) If any work constructed by the two authorities on in over through or across any works or lands or tidal waters within the jurisdiction of the commissioners is abandoned or suffered to fall into decay the commissioners may abate and remove the work or any part thereof and restore the site thereof to its former condition at the expense of the two authorities and the amount of such expense shall be a debt due

from the two authorities to the commissioners and be recoverable accordingly as an ordinary debt or at the option of the commissioners summarily as a civil debt: A.D. 1930.
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- (5) (a) The two authorities during the whole time of the construction alteration or extension of such part of the said works by this Act authorised as shall be below high-water mark shall exhibit and keep burning every night from sunset to sunrise at or near the said part of the works such lights (if any) and take such other steps for the prevention of danger to navigation as the commissioners shall from time to time require or approve;
- (b) After the completion of the works below high-water mark by this Act authorised the two authorities shall at the outer extremities of those works exhibit and keep burning every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the commissioners shall from time to time direct;
- (c) In case of injury to or destruction or decay of the works by this Act authorised or any part thereof so far as the same shall be constructed on under or over any tidal waters or tidal lands below high-water mark the two authorities shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the commissioners and shall apply to the commissioners for directions as to the means to be taken;
- (d) If there shall be any dispute between the commissioners and the Board of Trade or the Corporation of Trinity House of Deptford Strond as to any of the requirements or directions of the commissioners the provisions of this subsection shall be subject to the requirements or directions of the Board of Trade or the said Corporation respectively and in these circumstances the two authorities shall be liable only to comply with the requirements or directions of the Board of Trade or the said Corporation respectively;

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- (e) The sections of this Act of which the marginal notes are “ Lights on works during construction &c.” “ Permanent lights on works ” and “ Provision against danger to navigation ” shall so far as they provide for the imposition of penalties apply and have effect as if the commissioners had been referred to in the said sections respectively as well as the Board of Trade or the Corporation of Trinity House of Deptford Strond as the case may be and any penalty payable by the two authorities under the said sections may be payable to and recoverable by the commissioners summarily;
- (f) If there shall be any inconsistency between any plans or sections approved by the commissioners and the plans and sections approved by the Board of Trade under the section of this Act of which the marginal note is “ Works below “ high-water mark to be subject to approval of “ Board of Trade ” the works shall be executed in accordance with the plans and sections so approved by the Board of Trade.

For protection of
 Dorman
 Long and
 Company
 Limited.

63. For the protection of Dorman Long and Company Limited (in this section called “ the company ”) the following provisions shall unless otherwise agreed between the two authorities and the company apply and have effect (that is to say) :—

- (1) Notwithstanding anything shown on the deposited plans and sections the two authorities shall not enter upon take or use (otherwise than temporarily) any greater portion of the lands of the company than the lands delineated and coloured pink upon the signed plan but the two authorities may purchase and take and the company shall if so required by the two authorities sell and grant to them such easements or rights in the properties in the borough numbered on the deposited plans 78a and 85 or either of them as may be necessary to enable the two authorities to construct maintain and repair (subject to the provisions of this Act) so much of the bridge and approach road (Works Nos. 1 and 2) and of any works connected therewith by this Act authorised as is thereby to be constructed on under or over the said properties or either of them :

(2) The two authorities shall not remove or displace A.D. 1930.

or otherwise interfere with or do anything to
endanger any main pipe or apparatus by means
of which any supply of water is afforded to or
reaches any lands of the company or to impede
the passage of water into or through the same
until good and sufficient apparatus and other
works necessary and proper for continuing the
supply of water as freely and as efficiently as
the same was supplied by such main pipe or
apparatus shall at the expense of the two
authorities have first been completed in lieu
thereof to the reasonable satisfaction of the
company :

(3) The two authorities shall not enter upon take
or use or otherwise interfere with the level
crossing over the Darlington and Saltburn
Branch of the London and North Eastern Rail-
way leading from Samuelson Street and Ayre-
some Road to the southern end of the Newport
Iron Works of the company :

(4) The two authorities shall at their own expense
remove the footbridge in the borough numbered
71 on the deposited plans and shall at the like
expense provide proper and convenient steps
on the southern side of the Middlesbrough
approach giving access from the bridge to the
property of the company in the position shown
therefor on the signed plan and shall at the like
expense provide on the northern side of the said
approach a suitable and convenient roadway for
pedestrians and cyclists leading from the bridge
to the property of the company in the position
shown therefor on the said signed plan and with
an inclination as shown thereon :

(5) The company shall be entitled at any time if they
so desire and at their own expense to construct
on the lands of the company a ramp in the posi-
tion and of the width and inclination shown on
the signed plan and to connect the same with
the bridge so as to afford access from the bridge
to the lands of the company numbered 85 on the
deposited plans in the borough :

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- (6) The two authorities shall in constructing the bridge construct the same with four circular columns at the points marked A B C and D on the signed plan for the support thereof and (apart from the four cylinders supporting the bridge) there shall be no other means of support for the bridge with foundations on any lands now belonging to the company :
- (7) The two authorities shall not at any time during the construction of any works by this Act authorised interfere with any means of access to or egress from any part of the premises of the company or any means of communication between any parts of such premises and the two authorities shall so construct the works authorised by this Act as to secure that on the completion thereof all such means of access and egress and means of communication shall be as efficient so far as is reasonably practicable as the same now are :
- (8) The provisions of this section shall be in addition to and not in derogation of any rights of the company under any other provisions of this Act or of any Act incorporated therewith :
- (9) In this section the expression "signed plan" means the plan dated the sixth day of May nineteen hundred and thirty and signed by Preston Kitchen on behalf of the two authorities and Thomas Duncan Henlock Stubbs on behalf of the company.

For protection of
James
Gordon
Dugdale.

64. For the protection of James Gordon Dugdale or other the owner or owners for the time being of the lands numbered on the deposited plans 5 in the parish and borough of Stockton-on-Tees (all of whom are in this section included in the expression "the owner") the following provisions shall unless otherwise agreed between the owner and the two authorities apply and have effect (that is to say) :—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans if the two authorities shall enter upon take or use any part of the said lands they shall so soon as they have completed so much of the approach road (Work

No. 3) by this Act authorised as shall be situated on the said lands forthwith convey and assure to the owner in fee simple all such part of the said lands as shall not comprise the site of the said approach road (Work No. 3) and of any embankments connected therewith : A.D. 1930.

- (2) The price to be paid by the owner for any lands so conveyed and assured to him shall be a price bearing the same proportion to the price paid to the owner for any lands acquired from the owner by the two authorities under the powers of this Act as the area of the lands conveyed and assured to the owner bears to the area of lands acquired from him by the two authorities as aforesaid :
- (3) If and so soon as the two authorities decide to proceed with the improvement each of the two authorities shall pass a formal resolution to that effect and the two authorities shall within twelve months from the date of the passing of the last of the said two resolutions serve upon the owner notice to treat in respect of so much of the lands of the owner as the two authorities may desire to acquire under the powers of this Act :
- (4) The two authorities shall afford to the owner all reasonable facilities for forming at his own expense all such means of access to the said approach road (Work No. 3) from the lands of the owner as he may desire to form :
- (5) The two authorities shall in the construction of the works by this Act authorised take all reasonably practicable steps to prevent accumulation of water on the lands of the owner by reason of the construction of the said works :
- (6) Any question or dispute which may arise between the two authorities and the owner under this section (other than any disputed question of compensation which it is provided by this Act shall be determined by arbitration under the Lands Clauses Acts) shall be referred to and determined by a single arbitrator to be appointed by the President of the Surveyors' Institution

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on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

For protection of
London
and North
Eastern
Railway
Company.

65. Notwithstanding anything contained in this Act or shown upon the deposited plans and sections the following provisions shall unless otherwise agreed in writing between the two authorities and the London and North Eastern Railway Company (in this section referred to as "the company") apply and have effect (that is to say) :—

- (1) The two authorities shall not (except with the previous consent in writing of the company) enter upon take use or interfere with either permanently or temporarily any railways or works of the company or enter upon take use or interfere with either permanently or temporarily or purchase or acquire any lands or property belonging to the company which the two authorities are by this Act authorised to purchase take use enter upon or interfere with for the purposes of the works by this Act authorised but the company shall grant to the two authorities an easement over the railways and lands or right of using for such purposes the lands the position and area of which are approximately indicated by being coloured pink and hatched pink on the plan signed by Preston Kitchen on behalf of the two authorities and John Miller on behalf of the company and the two authorities may purchase and take and the company shall sell and grant an easement over or right of using such other of the lands of the company as may be necessary for the construction and maintenance of the said works and all temporary works connected therewith (in this section referred to as "the said works") subject to and in accordance with the provisions of this section :
- (2) The company shall not be responsible for lateral and vertical support for the works by this Act authorised :
- (3) The two authorities shall pay to the company for any easement or right which they may

acquire under the provisions of this section such consideration as may be agreed upon or in the event of difference may be determined in manner provided by the Lands Clauses Consolidation Act 1845 with respect to the purchase and taking of lands otherwise than by agreement and for the purpose of any such determination the acquisition of such easement or right shall be deemed a taking of lands within the meaning of the said Lands Clauses Consolidation Act 1845 : A.D. 1930.
—

- (4) The said works so far as the same will be carried over the railways lands works and property of the company (which said railways lands works and property are in this section referred to as "the railway") or may be in proximity thereto shall when commenced be carried out continuously with all reasonable dispatch and shall be constructed in such line or situation within the limits of deviation shown upon the deposited plans as shall be reasonably approved by the engineer of the company (hereinafter called "the engineer") and by such means and in such manner as in no way to obstruct impede or interfere with the free uninterrupted and safe user of the railway or with the traffic thereon or ancillary thereto and if any such obstruction or interference shall be caused or take place contrary to this enactment the two authorities shall notwithstanding any approval as aforesaid pay to the company all reasonable costs and expenses to which they may be put as well as full compensation for any loss sustained by them by reason of any such interruption or interference :
- (5) The two authorities shall not less than twenty-eight days before commencing the construction of any part of the said works which shall or may pass over or be adjacent to the railway furnish to the company proper and sufficient plans sections drawings and specifications of the works proposed to be made by the two authorities over or adjacent to the railway for the reasonable approval of the engineer and shall

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not commence the said work until such plans sections drawings and specifications shall have been approved in writing by the engineer or in case of difference arising between him and the two authorities until the same shall have been settled by arbitration. Provided that if the company shall not within twenty-eight days after the furnishing of such plans sections drawings and specifications express their disapproval thereof they shall be deemed to have approved thereof :

- (6) If any alterations or additions either permanent or temporary to the railway or to the signal boxes signals signalling apparatus or the telephone or telegraph wires or electric cables or the gas and water mains service pipes drains and other works are in the opinion of the engineer reasonably necessary in consequence of the construction and maintenance of the said works such alterations and additions shall be made and maintained by the company at the expense of the two authorities and the reasonable costs thereof as certified by the engineer shall be repaid to the company by the two authorities on demand :
- (7) The said works and the removal of the footbridge referred to in subsection (4) of the section of this Act of which the marginal note is "For protection of Dorman Long and Company Limited" so far as the same affect the railway shall be executed under the supervision and to the reasonable satisfaction of the engineer and the two authorities shall bear and pay to the company all reasonable costs charges and expenses incurred by the engineer in respect of such supervision and the reasonable expenses of and in connection with the employment by the company of a sufficient number of inspectors watchmen and signalmen to be appointed by them for inspecting watching lighting and signalling the railway with reference to and during the execution or repair of the said works and the removal of the said footbridge and for preventing as far as may be all interference obstruction danger or accident arising

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from any of the operations of the two authorities or from the acts or defaults of their contractors or of any person or persons in their employ in connection with the said works or removal :

- (8) The two authorities shall at all times maintain the bridges by which the said works shall be carried over the railway and all necessary works ancillary to such bridges in substantial repair and good order and condition to the reasonable satisfaction of the engineer and if and whenever the two authorities fail so to do after reasonable notice in that behalf the company may make and do in over and upon as well the lands and property of the company as of the two authorities such works and things as the engineer shall think requisite in that behalf and the reasonable cost of so doing as certified by the engineer shall be repaid to the company by the two authorities on demand :
- (9) The two authorities shall be responsible for and make good to the company all costs charges losses damages and expenses which may be occasioned to them or to the railway or to the traffic thereon or otherwise by reason of the construction maintenance or failure of the said works over or adjacent to the railway or of any act or omission of the two authorities or of any person or persons in their employ or of their contractors in connection with the said works and the two authorities shall effectually indemnify the company from all claims and demands upon or against them by reason of such construction maintenance or failure or of any such act or omission Provided that the fact that any work or thing has been done in accordance with any plan section drawing or specification approved by the engineer or in accordance with any requirement of the engineer shall not excuse the two authorities from any liability for damage as aforesaid or affect any claim of the company for injury to the railway or the traffic thereon save so far as the same may arise by reason of any such requirement :

A.D. 1930.

- (10) The two authorities shall indemnify the company against all claims for road making or street work charges or the maintenance thereof occasioned by the construction of the works by this Act authorised :
- (11) If at any time hereafter the company shall be desirous in exercise of statutory powers for such purposes existing at the passing of this Act of widening or altering any part of the railway affected by the said works or of adapting their railway for working by electrical power the two authorities shall give to the company all proper and reasonable facilities for that purpose including the right in connection with electrification to make attachments subject to the reasonable approval of the two authorities to the said works but nothing in this subsection shall entitle the company to require the two authorities to alter the main structure of the bridge :
- (12) The two authorities shall at all times during the execution of the said works and thereafter when the said works are completed provide access for pedestrian and vehicular traffic going to or coming from any station or depot of the company existing at the passing of this Act to the reasonable satisfaction of the engineer :
- (13) On completion of the bridge all rights of way over the existing footbridge shall be abolished and the company shall be at liberty to remove the same as and when they think fit :
- (14) Any difference arising between the two authorities and the company under this section (except under subsection (3) hereof) shall be referred to and determined by an engineer to be appointed as arbitrator by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 or any statutory modification or re-enactment thereof for the time being in force shall apply to any such reference and determination.

For protec-
tion of
Synthetic**66.** For the protection of Synthetic Ammonia
and Nitrates Limited (in this section referred to as

“the company”) the following provisions shall notwithstanding anything contained in this Act or shown upon the deposited plans and sections and unless otherwise agreed in writing between the company and the two authorities have effect (that is to say):—

A.D. 1930.

—
 Ammonia
 and
 Nitrates
 Limited.

(1) The two authorities shall not unless required so to do by the Tees Commissioners construct the bridge or any permanent works connected therewith north of the line marked A.B. upon the plan signed by Preston Kitchen on behalf of the two authorities and by Amos Hayton Cowap on behalf of the company one copy of which has been retained by the two authorities and the other by the company. In the event of the Tees Commissioners requiring the bridge or any permanent works connected therewith to be constructed north of the said line the two authorities shall (in order to afford the company an opportunity of making representations upon the matter to the Tees Commissioners) notify the company in writing that such requirement has been made:

(2) The two authorities shall not under the powers of this Act stop up interfere with alter or divert or alter the line or level of any stream or watercourse the bed banks or soil of which is the property of the company or any stream or watercourse (other than the river) by which any of the property of the company is drained except with the previous consent of the company. Provided that the consent of the company shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by arbitration under this Act.

67. Notwithstanding anything in this Act or on the deposited plans the following provisions for the protection of the South Durham Steel and Iron Company Limited their successors and assigns or other the owner or owners for the time being of the lands in the borough of Stockton-on-Tees delineated on the signed plan (hereinafter defined) and thereon coloured blue (all of whom are in this section collectively referred to as “the company”) shall except so far as may be otherwise agreed

For protection of
 South
 Durham
 Steel and
 Iron
 Company
 Limited.

A.D. 1930. in writing between the company and the two authorities
— apply and have effect :—

- (1) In this section the following expressions have the meanings herein stated (namely) :—

“ the signed plan ” means the plan signed in duplicate by Philip Henry Monk on behalf of the company and Preston Kitchen on behalf of the two authorities of which one copy has been retained by the company and the other copy has been retained by the two authorities ;

“ the lands of the company ” means the lands coloured blue on the signed plan ;

“ the said line ” means the line coloured red on the signed plan :

- (2) The two authorities shall not acquire or take or enter upon or use (otherwise than temporarily under the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof incorporated with this Act) any portion of the lands of the company which lie to the westward of the said line :

- (3) If the two authorities shall acquire any portion of the lands of the company which lie to the eastward of the said line they shall purchase and take the whole of the lands of the company which lie to the eastward of the said line including any part belonging to the company of the bed banks and foreshore of the river lying to the eastward of the said line at such price as may have been or may hereafter be agreed between the two authorities and the company such price to be accepted and taken by the company in full satisfaction of all claims by the company against the two authorities arising out of the acquisition by the two authorities of so much of the lands of the company as aforesaid whether in respect of compensation for lands acquired or of severance or (save as provided by subsection (7) of this section) of injurious affection :

- (4) The two authorities shall simultaneously with the commencement of the construction of the Durham approach provide erect or construct and thereafter maintain to the reasonable satisfaction of the company— A.D. 1930.
—

(a) a suitable unclimbable fence on the westward side of the Durham approach throughout the length of so much thereof as shall sever the lands of the company such fence to be of such material and height as the company may reasonably approve;

(b) a channel or surface water drain in such position as the company may reasonably require sufficient to carry off so far as may be reasonably practicable all surface water arising on or flowing through or over the lands of the company situate to the westward of the said line;

(c) such sewers culverts or other works as may be reasonably required by the company with proper and sufficient outfalls into the river for carrying away any waters under the lands of the company to the westward of the said line :

- (5) All drains streams or watercourses situate upon the lands of the company or by which those lands are drained which may be cut or injured by the Durham approach shall be diverted and dealt with in such manner as the company shall reasonably require :
- (6) The provisions of the section of this Act of which the marginal note is " Further powers of entry " shall not apply to the lands of the company :
- (7) In addition to the price referred to in subsection (3) of this section the two authorities shall pay to the company compensation in respect of such physical damage if any (being damage of a character affecting or likely to affect the value of the lands hereinafter in this subsection referred to either as agricultural land or as a site for the erection of buildings or for development for industrial purposes) as during the period between the commencement of the construction

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of the Durham approach through the lands of the company and the expiration of five years from the latest date of the passing of the resolutions referred to in the section of this Act of which the marginal note is "Improvement to form public street" may be caused to the lands of the company situate to the westward of the said line by reason of the construction of the Durham approach such compensation to be determined in default of agreement by arbitration under the Lands Clauses Acts :

- (8) Any difference which may arise between the company and the two authorities under this section shall (except where otherwise expressly provided) be referred to and determined by an engineer to be agreed between the parties or failing agreement to be appointed on the application of either party (after notice in writing to the other of them) by the President of the Institution of Civil Engineers and subject thereto the provisions of the Arbitration Act 1889 shall apply to any such reference.

Expenses of
execution of
Act.

68. All expenses incurred in carrying into execution the provisions of this Act (including all costs charges and expenses of and in relation to the borrowing of any moneys under the powers of this Act and all interest on and all instalments appropriations and sinking fund payments in respect of such borrowed moneys) other than such of them as are properly chargeable to capital and payable out of borrowed money shall be paid—

- (a) as respects the Corporation out of the general rate fund and general rate; and
 (b) as respects the County Council out of the county fund as expenses incurred for general county purposes.

Power to
Corpora-
tion to
borrow.

69.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes hereinafter mentioned as follows :—

- (a) the acquisition of land for and the construction of the improvement any sum or sums not exceeding in the whole seventy-seven thousand pounds;

(b) the payment of the costs charges and expenses of and incidental to the preparing applying for and obtaining this Act the sums requisite. A.D. 1930.
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(2) The Corporation may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(3) The Corporation shall make provision for the repayment of any money borrowed by them under this section within the following periods (namely) :—

(a) As regards money borrowed under subsection (1) of this section for the purpose (a) therein mentioned sixty years from the date or respective dates of borrowing and that period shall be deemed to be the prescribed period for the purposes of this Act and of the enactments referred to in the section of this Act of which the marginal note is “ Application of provisions of existing Acts relating to Corporation ”;

(b) As regards money borrowed under the said subsection (1) for the purpose (b) therein mentioned five years from the date of the passing of this Act;

(c) As regards money borrowed with the consent of the Minister of Health such period as may be prescribed by him.

(4) In order to secure the repayment of moneys borrowed on mortgage by the Corporation under the powers of this section and the payment of interest thereon the Corporation may mortgage or charge the revenues of the Corporation.

70.—(1) The County Council may from time to time independently of any other borrowing power borrow at interest for the purposes hereinafter mentioned as follows :— Power to County Council to borrow.

(a) the acquisition of land for and the construction of the improvement any sum or sums not exceeding in the whole seventy-seven thousand pounds;

(b) the payment of the costs charges and expenses of and incidental to the preparing applying for and obtaining this Act the sums requisite.

A.D. 1930.

—

(2) The County Council may also with the consent of the Minister of Health borrow such further money as may be necessary for any of the purposes of this Act.

(3) The County Council shall make provision for the repayment of any money borrowed by them under this section within the following periods (namely):—

(a) As regards money borrowed under subsection (1) of this section for the purpose (a) therein mentioned sixty years from the date or respective dates of borrowing;

(b) As regards money borrowed under the said subsection (1) for the purpose (b) therein mentioned five years from the date of the passing of this Act;

(c) As regards money borrowed with the consent of the Minister of Health such period as may be prescribed by him.

(4) In order to secure the repayment of money borrowed under this section the County Council may mortgage the county fund and all or any of their revenues.

(5) Any money to be borrowed under this Act by the County Council shall be borrowed under and subject to the provisions (so far as applicable) of section 69 of the Local Government Act 1888 and the Local Government Act 1929 but the consent of the Minister of Health shall not be required to the borrowing or to the period of repayment of moneys borrowed under this section except as regards money borrowed under subsection (2) of this section.

Application
of provi-
sions of
existing
Acts
relating to
Corpora-
tion.

71. The following sections of the Acts hereinafter mentioned shall so far as they are applicable to the purpose extend and apply with the necessary modifications to and in relation to the powers of borrowing money conferred by this Act upon the Corporation (that is to say):—

The Middlesbrough Corporation Act 1910—

Section 23 (Mode of raising money);

Section 26 (Mode of payment off of money borrowed);

Section 28 (Protection of lender from inquiry);

Section 29 (Corporation not to regard trusts of money lent); A.D. 1930.

Section 30 (Appointment of receiver);

Section 31 (Power to re-borrow);

Section 33 (Application of money borrowed).

The Middlesbrough Corporation Act 1926—

So much of section 3 (Interpretation) as defines the expressions “statutory borrowing power” “statutory security” and “the revenues of the Corporation”;

Section 20 (All stock and loans to rank equally);

Section 21 (Security for future borrowing);

Section 22 (Power to use one form of mortgage for all purposes);

Section 23 (Sinking fund).

72.—(1) The North Riding County Council may from time to time and on such terms and conditions as may be agreed contribute and pay to the two authorities any capital sum which they may agree towards the cost of the acquisition of land for and the construction of the improvement and any annual or other sum which they may agree towards the cost of maintenance of the bridge. Power to North Riding County Council to contribute.

(2) The North Riding County Council may borrow any capital sum to be contributed by them as aforesaid subject to and in accordance with the provisions of the Local Government Act 1888 as amended by the Local Government Act 1929 as if such contribution were a purpose of that Act.

(3) Any contribution or payment under or by virtue of the provisions of this section for which the North Riding County Council may become liable shall be paid out of the county fund.

(4) The two authorities or either of them and the North Riding County Council may respectively enter into agreements with respect to the matters aforesaid.

73.—(1) The Minister of Health may direct any inquiries to be held by his inspectors which he may deem necessary in regard to the giving of any consent to the borrowing of money under this Act and the inspectors of the Minister of Health shall for the purposes of any Inquiries by Minister of Health.

A.D. 1930. — such inquiry have all such powers as they have for the purposes of inquiries directed by that Minister under the Public Health Act 1875.

(2) The authority applying for any such consent shall pay to the Minister of Health any expenses incurred by that Minister in relation to any inquiry held in pursuance of this section in connection with such application including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Minister not exceeding five guineas a day for the services of such inspector.

Return to
Minister of
Health with
respect to
repayment
of debt.

74.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under the authority of this Act.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the borough accountant or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid (whether such instalment or annual payment is required by this Act or by the Minister in virtue thereof to be paid appropriated or set apart) the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

75. In respect of the exercise of any powers or duties conferred on the Minister of Transport under this Act the provisions of Part I of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words "under the seal of the Minister of Transport" were substituted for the words "by writing under the hand of the President or of one of the secretaries of the Board."

A.D. 1930.
 —
 Inquiries by
 Minister of
 Transport.

76. Any question or difference arising under this Act as to the amount of any compensation costs damages or expenses to be paid by the two authorities or otherwise or as to any other matter of which question or difference the determination is not otherwise provided for shall be referred to and determined by a single arbitrator to be appointed failing agreement by the President of the Institution of Civil Engineers on the application of either party to the question or difference after notice in writing to the other of them and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference.

Arbitration.

77. Any dispute difference or question which may arise between the two authorities as to the meaning or construction of the following sections of this Act (namely):—

As to
 differences
 between
 two
 authorities.

"Appointment and powers of joint committee";

"As to cost of improvement";

"As to payments to be made in respect of improvement";

"Maintenance of bridge";

or as to any act or thing to be made or done by either authority in pursuance of any of those sections or with regard to the rights or liabilities of either of the two authorities under those sections or any of them shall be referred to the arbitration of one person to be appointed in default of agreement between the two authorities by the Minister of Transport.

78. Save as otherwise by this Act expressly provided all offences against this Act or any byelaw made in pursuance of this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be

Recovery of
 penalties
 &c.

A.D. 1930. prosecuted and recovered in a summary manner. Pro-
— vided that costs or expenses except such as are
recoverable along with a penalty shall not be recovered
as penalties but may be recovered summarily as civil
debts.

Judges not **79.** A judge of any court or a justice shall not be
disqualified. disqualified from acting in the execution of this Act by
reason of his being liable to any rate.

Saving for **80.** Except as is by this Act expressly provided
Tees Com- nothing in this Act contained shall extend to prejudice
missioners. diminish alter or take away any of the powers rights
privileges or authorities vested in or exerciseable by the
Tees Commissioners.

Crown **81.** Nothing in this Act affects prejudicially any
rights. estate right power privilege or exemption of the Crown and
in particular nothing herein contained authorises the
two authorities to take use or in any manner interfere
with any portion of the shore or bed of the sea or of
any river channel creek bay or estuary or any land
hereditaments subjects or rights of whatsoever descrip-
tion belonging to His Majesty in right of His Crown
and under the management of the Commissioners of
Crown Lands or of the Board of Trade respectively
without the consent in writing of the Commissioners of
Crown Lands or the Board of Trade as the case may be
on behalf of His Majesty first had and obtained for that
purpose.

Crown **82.** Notwithstanding the provisions contained in
minerals. the section of this Act of which the marginal note is
“Crown rights” or in any public statute His Majesty
and His lessees for their respective interests may (unless
otherwise agreed in writing with the two authorities)
work any materials belonging to His Majesty in right
of His Crown under or adjacent to lands and works of
the two authorities authorised to be taken or constructed
by this Act.

Costs of Act. **83.** The costs charges and expenses preliminary to
and of and incidental to the preparing applying for
obtaining and passing of this Act as taxed by the taxing
officer of the House of Lords or of the House of Com-
mons shall be borne by the two authorities in equal
shares and shall be paid in the case of the Corporation

out of the general rate fund and general rate or out of A.D. 1930.
moneys to be borrowed by the Corporation under this
Act and in the case of the County Council out of the
county fund or out of moneys to be borrowed by that
council under this Act.

The SCHEDULE referred to in the foregoing Act.

DESCRIPTION OF PROPERTIES OF WHICH PORTIONS
ONLY MAY BE TAKEN.

Area.	Numbers on deposited plans.
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